



CHAPTER xxix.

An Act to confirm a Provisional Order of the Local A.D. 1918.
Government Board for Ireland relating to the County
Borough of Limerick. [30th July 1918.]

WHEREAS the Local Government Board for Ireland have made the Provisional Order set out in the schedule hereto under the Public Health (Ireland) Acts 1878 to 1907:

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order set out in the schedule hereto is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Local Government Board (Ireland) Provisional Order Confirmation (No. 2) Act 1918. Short title.

A.D. 1918.

S C H E D U L E.

LIMERICK COUNTY BOROUGH.

Limerick.

*Provisional Order to alter and amend the Limerick
Corporation Gas Act 1878.*

41 & 42 Vict.
c. clx. WHEREAS the mayor aldermen and burgesses of the county borough of Limerick acting by the town council (in this Order referred to as "the corporation") are the sanitary authority for the county borough and the Limerick Corporation Gas Act 1878 (in this Order referred to as "the Act") is in force in an area comprising the county borough and the corporation are authorised by the Act to maintain gasworks and supply gas:

And whereas by section 27 of the Act it is enacted that the price to be charged by the corporation for gas supplied by them to consumers shall not exceed five shillings for every thousand cubic feet consumed in the borough or six shillings for every thousand cubic feet consumed elsewhere within the limits of supply and so in proportion for any smaller quantity consumed and the price to be so charged shall be the same to all consumers and shall include the hire or rent of one meter:

And whereas by section 40 of the Act provision is made for the application of all moneys from time to time received by the corporation by way of revenue in respect of the gas undertaking carried on by them (therein referred to as "the general undertaking") including provision for the establishment of a reserve fund of seven thousand pounds if the corporation think fit by setting aside out of the revenue such moneys as the corporation from time to time think reasonable and also provision for carrying to the improvement fund (as in the Act defined) any balance of revenue remaining in any year and the annual proceeds of the reserve fund when amounting to seven thousand pounds:

And whereas the corporation have applied to the Local Government Board for Ireland (in this Order referred to as "the Local Government Board") for a Provisional Order altering and amending section 27 of the Act so as to enable the corporation to charge temporarily prices for gas in excess of the prices authorised by that section and to alter and amend section 40 of the Act so as to make further provision as to the application of the revenue received in respect of the general undertaking:

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And whereas after inquiry it appears to the Local Government Board expedient that the said sections should be altered and amended in manner hereinafter appearing: A.D. 1918.
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Now therefore We the Local Government Board in pursuance of the powers given to us by section 205 and section 214 of the Public Health (Ireland) Act 1878 and of all other powers enabling us in that behalf do hereby order as follows:— 41 & 42 Vict.
c. 52.

1. Section twenty-seven of the Act shall be amended by the addition of the following proviso at the end thereof:—

“Provided that during the continuance of the present war and such further period not exceeding two years from the termination of the war as may be fixed by the Local Government Board the maximum price that may be charged by the corporation for gas so supplied shall be six shillings instead of five shillings for every thousand cubic feet consumed in the borough or seven shillings instead of six shillings for every thousand cubic feet consumed elsewhere within the limits of supply and so in proportion for any smaller quantity consumed and the price to be so charged shall be the same to all consumers and shall include the hire or rent of one meter.”

2. Section forty of the Act shall be amended as follows that is to say:—

(a) For the paragraph commencing with the word “Firstly” the following paragraph shall be substituted:—

“Firstly—In payment of the establishment charges that is to say of the expenses properly chargeable to revenue of establishing conducting managing improving and maintaining the gasworks and works connected therewith respectively.”

(b) In the paragraphs commencing respectively with the words “Secondly” and “Thirdly” the references to moneys borrowed under the authority of the Act and to the provisions of the Act shall be construed as including references to moneys borrowed for the purposes of the general undertaking under the authority of any subsequent Act and to the provisions of such Act respectively.

(c) For the paragraph commencing with the word “Fourthly” the following paragraph shall be substituted:—

“Fourthly—In providing a reserve fund by setting aside the residue of the revenue in each year and investing and accumulating the same at compound interest until the fund so formed amounts to seven thousand pounds which fund shall be applicable from time to time to answer any deficiency at any time happening in the income of the

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corporation from the general undertaking or to meet any extraordinary claim or demand at any time arising against the corporation in respect of that undertaking and so that if the fund is at any time so reduced it shall thereafter be again restored to the sum of seven thousand pounds and so from time to time as often as such reduction happens."

(d) The following proviso shall be added at the end of the said section:—

"Provided that if the sum which but for this provision would be carried to the improvement fund as aforesaid exceeds one thousand pounds in any year in which the price charged to private consumers for gas consumed in the borough exceeds four shillings and sixpence per thousand cubic feet one thousand pounds only shall be carried to the improvement fund and the residue of the said sum shall be added to and form part of the reserve fund and thenceforward the reserve fund shall subject to any such temporary reduction as aforesaid be maintained at the amount to which it has been increased by any such addition."

3. The foregoing amendments shall be deemed to be incorporated in the Act.

4. The costs and expenses of the corporation and the Local Government Board incurred in respect of the application for preparation making and confirmation of this Order shall be paid by the corporation and shall be treated as establishment expenses incurred in connection with their gas undertaking.

5. This Order may be cited as the Limerick Corporation Gas Order 1918 and shall come into operation on the date of the Act confirming this Order.

Given under our Seal of Office this thirteenth day of May in the year of our Lord one thousand nine hundred and eighteen.

(L.S.)

(Signed) H. A. ROBINSON.

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